

## 25TRCV04159 25TRCV04159

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Case Number: 25TRCV04159 Hearing Date: September 9, 2026 Dept: P

Motion for Reconsideration

Moving Party: Plaintiff B. Elliott

Responding Party: Defendants Van Lingen Towing, Inc., Robert Van Lingen, and Sean Van Lingen

### RULING

The court considered the moving papers and opposition. Plaintiff's Motion for Reconsideration is DENIED.

### PROCEDURAL BACKGROUND

On December 9, 2025, Plaintiff B Elliott ("Plaintiff") filed a complaint against Defendants Matthew Vander Horck, Kenneth "Kenny" Galan, Van Lingen Towing, Inc., Robert Van Lingen, Sean Van Lingen, and DOES 1 through 100, inclusive, alleging seven causes of action for: (1) Conversion (Civil Theft) & Trespass to Chattels; (2) Negligence; (3) Violation of Vehicle Code Sections 22651 and 22852; (4) Intentional Infliction of Emotional Harm; (5) Unfair Business Practices; (6) Unclean Hands; and (7) Damages & Injunctive Relief (Return of Personal Property).

On February 11, 2026, Plaintiff filed a first amended complaint ("FAC") against the same Defendants, alleging nine causes of action for: (1) Conversion; (2) Trespass to Chattels; (3) Negligence; (4) Violation of the Bane Act (Civil Code Section 52.1); (5) Violation of Vehicle Code Sections 22651 and 22852; (6) Intentional Infliction of Emotional Distress; (7) Unfair Business Practices (Against Van Lingen Towing); (8) Injunctive Relief (Against Van Lingen Towing); and (9) Violation of Procedural Due Process.

On March 25, 2026, Defendants Van Lingen Towing, Inc., Robert Van Lingen, and Sean Van Lingen (collectively, the "Van Lingen Defendants") filed a demurrer to Plaintiff's FAC and motion to strike. On May 6, 2026, the court sustained the Van Lingen Defendants' demurrer in its entirety with leave to amend and denied the motion to strike as moot.

On June 4, 2026, Plaintiff filed a second amended complaint ("SAC") against Defendants Matthew Vander Horck, Kenneth "Kenny" Galan, Van Lingen Towing, Inc., Robert J Van Lingen, Sean Van Lingen, Oscar Castro, Ruben Lopez, David Carmichael, "Mendoza (Serial #22936)," Mr. C's Tow, "Toni," employee of Mr. C's Tow, Ricky Northcott, Kurtis McElroy, and DOES 14 through 100, inclusive (collectively, "Defendants"), alleging seven causes of action for: (1) Conversion (Civil Theft); (2) Trespass to Chattels; (3) Violation of Vehicle Code Sections 22651, 22852, 22853; (4) Negligence; (5) False Arrest and

False Imprisonment; (6) Bane Act; and (7) 42 U.S.C. Section 1983 – Unlawful Seizure and Deprivation of Property Without Due Process.

On June 23, 2026, the Van Lingen Defendants filed a demurrer to Plaintiff's SAC and a motion to strike. On July 29, 2026, the court sustained the Van Lingen Defendants' demurrer in its entirety without leave to amend and denied the motion to strike as moot.

On August 20, 2026, Plaintiff filed the instant motion. On August 28, 2026, the Van Lingen Defendants filed an opposition.

## FACTUAL BACKGROUND

Plaintiff alleges that on October 16, 2025, Plaintiff's vehicle (the "Subject Vehicle") was parked in an unrestricted parking space outside of the art gallery workroom at El Camino College. (SAC, ¶ 19.) Plaintiff alleges that while she was working inside the gallery, Defendant Officer Kenneth Galan entered and informed Plaintiff that the Subject Vehicle should not be parked in the space outside of the gallery and subsequently told Plaintiff that the Subject Vehicle would be towed. (SAC, ¶¶ 20, 23.) Plaintiff alleges that she called the El Camino College Police Department ("ECCPD") and requested that Defendant Matthew Vander Horck respond to the scene to deescalate. (SAC, ¶ 33.) Next, Plaintiff alleges that Defendant Vander Horck ran a law enforcement database search using Plaintiff's personal identifiers before informing Plaintiff that she was under arrest due to a warrant for battery assault. (SAC, ¶¶ 51, 54-55.) Plaintiff alleges that she was ordered to surrender the key to the Subject Vehicle to Defendant Galan, after which Plaintiff was transported to jail. (SAC, ¶¶ 67-68.)

Plaintiff alleges that Defendant Rubin Lopez informed Plaintiff that the Subject Vehicle was impounded due to expired registration. (SAC, ¶ 90.) Plaintiff alleges that ECCPD caused the Subject Vehicle to be released to Defendant Van Lingen Towing which took physical custody of the Subject Vehicle and transported it to a storage facility in Torrance. (SAC, ¶¶ 101-102.) Plaintiff alleges that when the Van Lingen Defendants accepted the Subject Vehicle, they were "acting pursuant to a confirmed request from ECCPD Officer Galan." (SAC, ¶ 103.)

Next, Plaintiff alleges that on November 3, 2025, she emailed Defendant Robert Van Lingen a demand for release of the Subject Vehicle, and Defendant Van Lingen Towing did not release the Subject Vehicle. (SAC, ¶¶ 108-109.) Plaintiff alleges that neither Defendants Robert Van Lingen nor Sean Van Lingen provided Plaintiff with written documentation identifying the legal basis for the continued retention of the Subject Vehicle. (SAC, ¶¶ 110-111.) Plaintiff further alleges that Defendant Van Lingen Towing "continued to retain possession of Plaintiff's car after receipt of Plaintiff's written demand for release." (SAC, ¶ 112.)

Plaintiff alleges that she later learned that Signal Hill Police Department had received an abandonment report on January 20, 2026 regarding the Subject Vehicle, and Signal Hill Police informed Plaintiff that the Subject Vehicle was towed and impounded by Defendant Mr. C's Towing on January 21, 2026. (SAC, ¶¶ 137, 139.) Plaintiff further alleges that in February 2026, she "received notice from Clear Choice Lien Service, Inc., informing [Plaintiff] of the [Subject Vehicle's] lien status and pending sale." (SAC, ¶ 135.)

Plaintiff alleges that on March 4, 2026, she visited the DMV to inquire about the transfer of ownership of the Subject Vehicle but was provided no explanation or documentation regarding the Subject Vehicle's release from the Van Lingen Defendants. (SAC, ¶¶ 147-148.) Plaintiff alleges that she saw the Subject Vehicle for the first time on March 11, 2026, the date of the Subject Vehicle's auction, and Plaintiff bid on the Subject Vehicle, won the bid, and paid \$300.00 for the Subject Vehicle. (SAC, ¶¶ 163-164, 167-169.)

## LEGAL STANDARD

"When an application for an order has been made to a judge, or to a court, and refused in whole or in part, or granted, or granted conditionally, or on terms, any party affected by the order may, within 10 days after service upon the party of written

notice of entry of the order and based upon new or different facts, circumstances, or law, make application to the same judge or court that made the order, to reconsider the matter and modify, amend, or revoke the prior order. The party making the application shall state by affidavit what application was made before, when and to what judge, what order or decisions were made, and what new or different facts, circumstances, or law are claimed to be shown.” (Code Civ. Proc. Section 1008(a).)

A court acts in excess of jurisdiction when it grants a motion to reconsider that is not based upon “new or different facts, circumstances or law.” (Gilberd v. AC Transit (1995) 32 Cal. App. 4th 1494, 1499.) There is a strict requirement of diligence, meaning the moving party must present a satisfactory explanation for failing to provide the evidence, different facts, or law earlier. (Garcia v. Hejmadi (1997) 58 Cal. App. 4th 674, 690.) A motion for reconsideration is properly denied when it is based on evidence that could have been presented in connection with the original motion. (Morris v. AGFA Corp. (2006) 144 Cal.App.4th 1452, 1460; Hennigan v. White (2011) 199 Cal.App.4th 395, 406.)

## DISCUSSION

### Moving Party’s Argument

Plaintiff argues that the court should reconsider its July 29, 2026 order sustaining the Van Lingen Defendants’ demurrer without leave to amend. Plaintiff argues that new facts exist, warranting reconsideration, because Plaintiff submitted a public records request for a City of Torrance contract establishing duties owed by Van Lingen Towing as an official police garage, and Plaintiff additionally obtained a California Secretary of State business filing identifying Robert Van Lingen as CEO and Sean Van Lingen as CFO of Van Lingen Towing. Plaintiff argues that the instant motion should be deemed timely filed because she made eighteen attempts to upload the motion through the court’s electronic filing system, but technical errors prevented her from filing the motion on time. Plaintiff argues that her proposed third amended complaint cures the defects identified by the court in its ruling on the Van Lingen Defendants’ demurrer to the SAC.

### Opposing Party’s Argument

The Van Lingen Defendants argue that the instant motion was untimely served. The Van Lingen Defendants further argue that the two documents offered by Plaintiff do not satisfy the diligence requirement of Section 1008(a) because the corporate filing has been a public record since October 2025, and Plaintiff has not explained why it was not obtained earlier. Additionally, the towing contract was available before Plaintiff submitted a public records request, and the contract is not material to this case because it is a contract between the City of Torrance and Van Lingen Towing, Inc., and Plaintiff alleges that the tow at issue in this case was ordered by ECCPD. The Van Lingen Defendants argue that Plaintiff’s motion cannot cure Plaintiff’s failure to oppose the Van Lingen Defendants’ demurrer to the SAC.

### Evidentiary Objections

The Van Lingen Defendants’ evidentiary objection Nos. 1-2 are SUSTAINED as improper legal conclusions. The Van Lingen Defendants’ evidentiary objection No. 3 is SUSTAINED due to lack of foundation.

The Van Lingen Defendants’ evidentiary objections Nos. 3-6 are OVERRULED.

### Merits of the Motion

#### A. Timeliness of the Instant Motion

Code of Civil Procedure Section 1008(a) provides that a motion for reconsideration must be filed within ten days after service of the order for which reconsideration is sought. (Code Civ. Proc. Section 1008(a).) A formal notice of ruling is required to set

the time limit running on a motion for reconsideration. The ten-day time limit runs from service of notice of entry of the order. (Code Civ. Proc. Section 1008(a); *Novak v. Fay* (2015) 236 Cal.App.4th 329, 335-336 (10-day limit did not apply where no notice of entry of order served.)

Here, the Notice of Ruling regarding the Van Lingen Defendants' demurrer to Plaintiff's SAC and motion to strike was filed and served by the Van Lingen Defendants on July 30, 2026. Plaintiff did not file the instant motion until August 20, 2026, which far exceeds the ten-day time limit. Plaintiff declares that on August 14, 2026, she "made approximately eighteen attempts over a period of approximately three and one-half (3.5) hours to upload and file the Motion through the Court's e-filing system. Each attempt was rejected by the system due to a technical error." (Plaintiff Decl., ¶ 5a.)

While the court finds that Plaintiff's explanation is insufficient to justify Plaintiff's delay until August 20, 2026 to file the instant motion, the court will exercise its discretion to consider Plaintiff's motion.

#### B. New Facts

When relying on new facts, the moving party must provide a "satisfactory explanation for the failure to produce that evidence at an earlier time." (*Shiffer v. CBS Corp.* (2015) 240 Cal.App.4th 246, 255.)

Plaintiff argues that new facts have arisen, warranting reconsideration of the court's order sustaining the Van Lingen Defendants' demurrer to Plaintiff's SAC without leave to amend. Plaintiff argues that she has since obtained a copy of a City of Torrance contract with Van Lingen Towing, Inc. which establishes duties owed by Van Lingen Towing, Inc., in addition to a California Secretary of State business filing which identifies Robert Van Lingen as the Chief Executive Officer and sole director of Van Lingen Towing, Inc. and Sean Van Lingen as the Secretary and Chief Financial Officer.

Plaintiff argues that she did not present these documents earlier because the City of Torrance contract and the California Secretary of State filing were not in Plaintiff's possession when she filed the SAC on June 4, 2026, because she submitted public records requests for the documents on July 2, 2026.

The Van Lingen Defendants argue, and the court agrees, that Plaintiff has failed to satisfy Code of Civil Procedure Section 1008(a)'s strict requirement of diligence, as Plaintiff has not explained why she was unable to submit the public records requests sooner. Additionally, the court's ruling on the Van Lingen Defendants' demurrer was based on several pleading defects identified by the court which would not have been cured regardless of whether Plaintiff's two documents were attached to the SAC.

The court observes that Plaintiff appears to be treating her Motion for Reconsideration as an opportunity to oppose the Van Lingen Defendants' demurrer to Plaintiff's SAC after Plaintiff declined to submit a timely opposition brief.

Because Plaintiff has not satisfied the requirements of Code of Civil Procedure Section 1008(a), Plaintiff's Motion for Reconsideration is DENIED.

#### CONCLUSION

Based on the foregoing, Plaintiff's Motion for Reconsideration is DENIED.

Moving party is ordered to give notice of ruling.